

25STCV26821 25STCV26821

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-07-22

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Case Number: 25STCV26821 Hearing Date: July 22, 2026 Dept: 510

No.

9 - Mariela Magana v. Med-Net Billing, Inc.

Francisco Magana's Motion to

Substitute for Plaintiff Mariela Magana

The

late Plaintiff Mariela Magana's spouse, Francisco Magana, moves for an order to substitute himself as plaintiff. "On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest." (CCP § 377.31.)

The

declaration of Francisco Magana states all facts required under Code of Civil Procedure section 377.32(a). Defendant Med-Net Billing, Inc. filed a notice of non-opposition.

Disposition

Francisco

Magana's motion to substitute for Plaintiff Mariela Magana is granted.

The

Court hereby appoints Francisco

Magana to proceed with this action as successor-in-interest to Plaintiff Mariela Magana.